



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590

DOT-E 8184
(CORRECTED COPY)

1. C.I.L. Chemicals Inc., Southfield, Michigan, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of flake TNT for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of flake TNT in composite type bags, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Atlas Powder Company, Dallas, Texas - PTE -1.

2. BASIS. This exemption is based on CIL Chemicals Inc.'s application dated April 9, 1979 and additional information provided in a letter dated April 24, 1979, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Atlas Powder Company's application dated October 31, 1979 and March 11, 1980 emergency application based on serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Flake trinitrotoluene, classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive.

5. REGULATION AFFECTED. 49 CFR 173.65.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is:

a. A non-DOT specification composite bag consisting of 4 plies of paper, enclosed in a 2.5 mil polyethylene bag which, in turn, is placed in a 10 ounce jute bag. Materials used in the bag and construction and closing of bag must be in accordance with page 4 of Canadian Industries Limited application to the Canadian Transport Commission dated September 19, 1977. Bags must be capable of withstanding drop tests shown on page 5 of the Canadian Industries' application without any loss of product. Maximum net weight of TNT placed in bag may not exceed 100 pounds.

b. A non-DOT specification composite bag consisting of 4 plies of paper, enclosed in a 9 mil polyethylene bag which, in turn, is placed in a 7 ounce jute bag. Materials used in the bag and construction and closing of bag must be in accordance with the specifications shown on the attachment dated June 7, 1979, to the Canadian Industries Limited letter to the Exemptions Branch, Office of Hazardous Materials Regulation (OHMR) dated June 21, 1979.

8. SPECIAL PROVISIONS. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.
10. EXPIRATION DATE. May 31, 1981.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAR 28 1980

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

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